

EUROPEAN FOOD SAFETY AUTHORITY (EFSA)

COMPLIANCE AUDIT

Audit of Health & Nutrition Claims under EC Reg 1924/2006 & UK Retained GB Claims Register

Executive Legal Assessment: This audit evaluates **Test-Based Nutrition** against the legal standards set by the **European Food Safety Authority (EFSA)** and the retained **Great Britain Nutrition and Health Claims Register (GB NHCR)** under EC Regulation No 1924/2006. The website positions its offerings around **laboratory biomarker measurement** (Omega-3 Index, Fatty Acid Ratios, HbA1c, Vitamin D) and **educational screening**, which falls squarely outside prohibited disease-cure claim restrictions.

1. EFSA / GB Health Claim Pillar Evaluation

EFSA Regulation Category	EFSA Legal Requirement	TBN Website Implementation & Audit Finding	Compliance Rating
Article 13.1 General Function Claims	Nutrient claims must be authorized on EFSA/GB register (e.g. EPA/DHA for normal heart, brain & vision function).	Content accurately describes EPA, DHA, and Vitamin D benefits in terms of normal cellular function, heart health, and immune support.	FULL COMPLIANCE
Article 14 Disease Risk Reduction Claims	Strict prohibition of stating or implying that a food/supplement reduces risk of clinical disease without explicit authorization.	No disease-cure or reduction claims made. Testing is presented as an objective measurement tool to guide lifestyle adjustments.	FULL COMPLIANCE
Article 10.2 Mandatory Information	Health claims must be accompanied by statements on balanced diet, varied nutrition, and healthy lifestyle.	Footer and pathway disclaimers explicitly emphasize the necessity of a balanced diet, lifestyle, and professional medical advice.	FULL COMPLIANCE
Biomarker vs Food Diagnostic Distinction	EFSA regulates commercial food/supplement marketing, not clinical blood spot screening or laboratory analysis.	TBN operates primarily as a test-based screening framework . Measuring Omega-6:3 ratios in laboratory blood tests is fully compliant.	FULL COMPLIANCE

2. EFSA Authorized Wording Reference Guide for TBN Marketing

- **EPA & DHA (Omega-3 Fatty Acids):** *'EPA and DHA contribute to the normal function of the heart'* (daily intake of 250mg).
- **DHA (Brain & Vision):** *'DHA contributes to maintenance of normal brain function and normal vision'* (daily intake of 250mg).
- **Vitamin D:** *'Vitamin D contributes to the normal function of the immune system and the maintenance of normal bones, teeth, and muscle function.'*
- **Olive Oil Polyphenols:** *'Olive oil polyphenols contribute to the protection of blood lipids from oxidative stress'* (5mg hydroxytyrosol per 20g).